



GPO Box 700

CANBERRA ACT 2601

1800 800 110

Richard McLean
27 LINLITHGOW ST
MITCHAM VIC 3132

Thursday, 1 June 2023

Re: Your Home and Living Supports
NDIS Participant Number: 430938559

Dear Richard,

I am writing to let you know the National Disability Insurance Agency (NDIA) has made a decision about your home and living supports. I have assessed your home and living needs based on information available to the NDIA. The evidence I have reviewed in making this decision is:

- NDIS Act 2013 – Section 34 Reasonable & Necessary Supports
- ILO Operational Guidelines
- SIL Operational Guidelines
- SDA Rules
- Occupational Therapy: Functional Assessment Report, Amy Cavenett, Occupational Therapist (Ability Rehab), dated 03/05/2023

I have assessed your home and living supports and the outcome of our decision is:

- Activities of Daily Living (ADL): suitable for drop-in ADL supports.

I have assessed your Specialist Disability Accommodation eligibility and at this time, you are not eligible for Specialist Disability Accommodation.

I have made this decision as the information you provided the NDIA demonstrates you do not meet the criteria for Specialist Disability Accommodation. If you would like more information on this, please refer to [Our Guideline – Specialist Disability Accommodation](#).

I have detailed the reason for my Home and Living decision at the bottom of this letter.

The reason for my decision is as below:

As the Lead Delegate in the Home and Living Complex Assessment Meeting I reviewed your home and living application and made the following home and living support determinations for you:

- Specialist Disability Accommodation (SDA): not eligible for SDA.
- Supported Independent Living (SIL): not suitable for SIL.

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- Activities of Daily Living (ADL): suitable for drop-in ADL supports.

In making this decision I reviewed the Occupational Therapy (OT): Functional Assessment Report by Amy Cavenett, Occupational Therapist (Ability Rehab), dated 03/05/2023 and noted that you are 50 years old, have a primary disability of Schizophrenia and secondary disabilities of Bipolar affective disorder & Other Anxiety disorders, are currently residing with a housemate (friend) in a private rental, do not have any physical support needs and are independent with mobility and transfers and require no assistive technology to mobilise and transfer, do not have additional sensory needs, and do not present with any extreme behaviours of concern. I determined that there was no extreme permanent physical requirement for an SDA response. I outlined that based on your functional capacity and support needs an SDA response is not required.

There is insufficient information to demonstrate that the provision of an SDA response would reduce your need for support or that the provision of SDA would be likely to substantially improve the life stage outcomes for, and be of long term benefit to, you at this time. (Part 2, Division 2.14.2 (a))

The cost of providing you with supports needed to live in accommodation other than specialist disability accommodation would be considered to represent better value for money than the cost of providing a SDA response in addition to the supports required by you at this time. (Part 2, Division 2.14.1 (e))

I concluded that you do not meet the SDA eligibility criteria as you do not present with 'an extreme functional impairment' or 'very high support needs' and do not meet the SDA needs requirement based on the information and evidence provided in home and living application and allied health reports.

The determination of ineligible for SDA has been made in alignment to the requirements of the NDIS Act and SDA Rules. The ineligibility for SDA considered the funded support requirements, taking account reasonable and necessary requirements along with value for money. The need for SDA funding to contribute to the disability related support needs has been reviewed and determined it could be met through other means including other NDIS funded supports.

I further determined that you are not suitable for SIL as there is insufficient evidence to demonstrate that you have a functional requirement for 24/7 support and monitoring to complete activities of daily living and on-site overnight support from a disability support worker. The evidence (OT Report, Cavenett, 03/05/2023 - page 3) states that you have "the capacity to stay home alone for a few days" which demonstrates that you do not require 24/7 support/ supervision.

In making the decision of not eligible for SDA and not suitable SIL I noted that SDA and SIL are not a mainstream housing response, and the responsibility sits with mainstream community housing supports. Please refer to Section 34 (f) of NDIS Act 2013 - the support is most appropriately funded or provided through the National Disability Insurance Scheme, and is not more appropriately funded or provided through other general systems of service delivery or support services offered by a person, agency or body, or systems of service delivery or support services offered:

- (i) as part of a universal service obligation; or
- (ii) in accordance with reasonable adjustments required under a law dealing with discrimination on the basis of disability.

Based on the evidence provided I determined that your disability related support requirements are most appropriately met through the provision of drop-in Activities of Daily Living (ADL) support to assist you with your daily support needs, build your routine and capacity, and support you to live as independently as possible. I recommend for the Planner building your plan to determine the reasonable and necessary level of ADL support, noting that you require less than 12 hours per day of support based on the evidence provided.

I further noted that you are currently being supported by mainstream mental health and drug and alcohol services and recommend for these linkages to be maintained.

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If you have any questions about this letter, please contact us in any of the ways listed under the **We're here to help** section of this letter.

Yours sincerely,

Lead Delegate – Kate P.

Delegate of the CEO

National Disability Insurance Agency

Operations and Housing Support Branch Manager

Ed Duncan

Branch Manager | Operations and Housing Support Branch

National Disability Insurance Agency

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How do I make our decisions

I want to provide the best option for support in your home, now and in the longer term. [Our Guidelines](#) include information for participants and the NDIS staff about how I make decisions. Our guidelines are based on the NDIS Legislation and Rules. They explain what I need to consider and how I make decisions based on the legislation. Remember there are principles I must follow when I create your plan. Each support must meet the NDIS funding criteria, as well as your total package of supports.

Who is responsible for providing housing supports?

There are many services outside the NDIS that all Australians can use, whether or not they have a disability. Mainstream supports are the supports you can get from other government funded services, including housing.

[Our Guideline – Mainstream and community supports](#) explains how I work out whether supports should be funded or provided by us, or by another service. It has information about who is responsible for providing housing supports and what government services are responsible for.

There are also many support services available through community organisations, like religious groups and supports from local councils.

What this means for you

The NDIA will reassess your current plan to include the home and living decision. Once approved please refer to your new National Disability Insurance Scheme (NDIS) plan, for your approved supports. This will also include any requests you have made for support coordination.

If you have any questions about this letter, please contact us in any of the ways listed under the "We're here to help" section of this letter.

Would you like us to explain this decision?

If you would like a further explanation of this decision, you can request this by:

- Sending a letter to: GPO Box 700, Canberra ACT 2601
- Visiting a NDIS Office
- Calling 1800 800 110
- Sending an email to enquiries@ndis.gov.au

I will use your preferred contact method to respond.

Have your circumstances changed?

If so, this may affect your NDIS plan or supports. It is important that you contact us about any change in your circumstances.

This change could include (but is not limited to):

- a change of address or contact details
- your home and living decision no longer meeting your needs

We're here to help

Online

- Internet Relay Users: relay.service.gov.au
- NDIS mailbox enquiries@ndis.gov.au
- NDIS Website [ndis.gov.au](https://www.ndis.gov.au)

Phone

- NDIS National Contact Centre: **1800 800 110**
- TTY Users: **1800 555 677**
- Speak and Listen Users: **1800 555 727**
- If you need help with English: **131 450**

In person

- You can also visit a **Local Area Coordinator**, **Early Childhood Partner** or **NDIS Office** in your area.

How to request a review of this decision

Your home and living supports will be included in your NDIS plan when it is approved. If you disagree with this decision, or any other decision about your plan, you can request an internal review your decision within 3 months of your plan being approved.

When asking for an internal review you should explain why you think the decision made is incorrect. The staff member who works on the internal review won't have been involved in the earlier decision.

Further Information

If you would like further information, the following resources are available:

- [NDIS | Our Guidelines – Home and Living; housing and living supports and services](#)
- [NDIS | SIL Provider Guidance – Supported independent living provider guidance](#)
- [NDIS | Provider portal guide and resources - MyPlace provider portal step-by-step guide](#)
- [NDIS | Pricing Arrangements and Price Limits](#)